

## CONTRACT AGREEMENT 2021-2022

The agreement is made between:

|                                                          |                                                                                                                                            |  |  |
|----------------------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|--|--|
| <b>PARTY A: MAIA RESORT QUY NHON JOINT STOCK COMPANY</b> |                                                                                                                                            |  |  |
| Address:                                                 | A part of mark No.1, Nhon Ly - Cat Tien Beach Resort, Nhon Hoi Economic Zone, Cat Tien Ward, Phu Cat District, Binh Dinh Province, Vietnam |  |  |
| Telephone:                                               | 84 256 220 6688                                                                                                                            |  |  |
| Fax:                                                     |                                                                                                                                            |  |  |
| Email:                                                   | reservations.mrqh@fusionhotelgroup.com                                                                                                     |  |  |
| Representative:                                          | Mr. MARC BITTNER                                                                                                                           |  |  |
| Title:                                                   | General Manager                                                                                                                            |  |  |

Validity: 01 November 2021 – 31 October 2022  
Market: All (excluding Korea)  
Currency: VND  
Rate basis: per room per night

### 1. Room rate:

| Room type                                      | Units | Rate bases on<br>(A: Adult) | Max Occ<br>(Surcharge)<br>A: Adult | Low season<br>01 Nov 2021 – 30 Dec 2021<br>03 Jan 2022 – 27 Jan 2022<br>07 Feb 2022 – 31 Mar 2022<br>01 Oct 2022 – 31 Oct 2022 | Shoulder season<br>01 Apr 2022 – 28 Apr 2022<br>03 May 2022 – 31 May 2022<br>05 Sep 2022 – 30 Sep 2022 | High season<br>01 Jun 2022 – 31 Aug 2022 | Peak season<br>31 Dec 2021 – 02 Jan 2022<br>28 Jan 2022 – 06 Feb 2022<br>29 Apr 2022 – 02 May 2022<br>01 Sep 2022 – 04 Sep 2022 |
|------------------------------------------------|-------|-----------------------------|------------------------------------|--------------------------------------------------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------------|------------------------------------------|---------------------------------------------------------------------------------------------------------------------------------|
| Semi Detached Villa                            | 14    | 2 A                         | 5 (Max 3A)                         | 3,760,000                                                                                                                      | 4,560,000                                                                                              | 5,600,000                                | 7,280,000                                                                                                                       |
| Garden Pool Villa                              | 37    | 2 A                         | 5 (Max 3A)                         | 5,520,000                                                                                                                      | 6,320,000                                                                                              | 7,360,000                                | 9,040,000                                                                                                                       |
| Ocean Pool Villa (old name: Deluxe Pool Villa) | 5     | 2 A                         | 5 (Max 3A)                         | 7,860,000                                                                                                                      | 8,710,000                                                                                              | 9,820,000                                | 11,600,000                                                                                                                      |
| Two-bedroom Garden Pool Villa                  | 32    | 4 A                         | 9 (Max 5A)                         | 11,040,000                                                                                                                     | 12,640,000                                                                                             | 14,720,000                               | 18,080,000                                                                                                                      |
| Two-bedroom Beachfront Pool Villa              | 2     | 4 A                         | 10 (Max 6A)                        | 15,040,000                                                                                                                     | 16,640,000                                                                                             | 18,720,000                               | N/A                                                                                                                             |
| Three-bedroom Garden Pool Villa                | 2     | 6 A                         | 14 (Max 8A)                        | 13,040,000                                                                                                                     | 15,440,000                                                                                             | 18,720,000                               | N/A                                                                                                                             |
| Three-bedroom Beachfront Pool Villa            | 2     | 6 A                         | 14 (Max 8A)                        | 17,040,000                                                                                                                     | 19,440,000                                                                                             | 22,720,000                               | N/A                                                                                                                             |

### Conditions:

- \* Above contracted rates are in Vietnam Dong (VND) and inclusive of service charge (5%) and applicable value added tax (10%).
- \* Rates are non-commissionable and based on per villa per night.
- \* Rates include daily **breakfast and one (1) spa treatment per night per adult OR daily breakfast and one (1) half board per night per person** up to 2 people for Semi Detached Villa, Garden Pool Villa, Ocean Pool Villa; four (4) people for Two-bedroom Villas and six (6) people for Three-bedroom Villas.
- \* GIT rates (>= 6 rooms) are available upon request.
- \* Allotments are subject to request for all FIT bookings and contracted by separate annex with respective terms and conditions.
- \* This contract is subject to terms & conditions, which are an integral part of the contract.
- \* Booking must mention code of market or tour operator's name for reference.
- \* Wholesaler, tour operators, travel agents have to use selected hotel pictures to design or list resorts on brochure, flyer or other PR material as authorized by resort.
- \* Hotel reserves/affirms the obligation of the contract partner to charge a **MINIMUM MARK-UP 15%** on this contracted rate to Tour operator, international wholesaler and others.

### Added value benefits:

- \* Villa with private infinity pool (Semi-Detached Villa does not have a private pool)
- \* Daily Breakfast at Vi Restaurant
- \* Nightly turn down service
- \* Welcome fruit & artisanal amenities
- \* Complimentary minibar (replenished daily)
- \* Zero-waste toiletries
- \* Organic refillable essentials (body lotion, shower gel, shampoo, conditioner, bar soap)
- \* Beach Set – locally-crafted beach bag and wide-brimmed hats
- \* Complimentary WIFI

### **2. Meal plan supplements:**

| Meal rates per person | From 12 years old + | From 6 - under 12 years old |
|-----------------------|---------------------|-----------------------------|
| Half Board            | VND 800,000         | VND 400,000                 |
| Full Board            | VND 1,400,000       | VND 700,000                 |

### **Meal Plan:**

- \* Half Board is defined as one (1) meal daily:
  - 1 x lunch OR dinner daily (limited to three (3) courses with starter, main & dessert)
  - Guests can select from a la carte menu
  - Menu is subject to change without notice
- \* Full Board is two meals daily:
  - 1 x lunch (limited to two (2) courses with starter & main OR main & dessert) PLUS 1 x dinner (limited to three (3) courses with starter, main & dessert)

#### **Distribution of Contracts:**

Contract Rates are valid for bundled, packaged or brochure international leisure business only. Contract Rates are only valid for bona fide Tour Operators.

Contract Rates cannot be offered by the Tour Operator direct to the consumer via the Internet, or by any other internet channels, through owned, affiliated or subsidiary companies, without prior written approval from the hotel.

#### **Distribution of Contracts on the Internet:**

Contract Rates are valid for bundled, packaged or brochure international leisure business only and cannot be offered in other markets that are specified.

The Contract Rates are not to be offered, knowingly or unknowingly, to any party that distributes or retails via the Internet, or to any party that causes to distribution or retailing via the Internet.

#### **Children policy:**

- Baby cots are complimentary upon request, subject to availability.
- Maximum 1 sofa bed per bedroom is permitted.
- Complimentary half board for two (2) children under 6 years old. (applied to half board inclusive option only)
- Maximum of two (2) children under the age of 12 per bedroom is permitted.

| Surcharge/ Age         | < 6 years old               | 6 - <12 years old           | 12 - <16 years old            | >=16 years old                 |
|------------------------|-----------------------------|-----------------------------|-------------------------------|--------------------------------|
| Breakfast & Half-Board | FOC                         | 600,000                     | 1,500,000*                    | 1,500,000*                     |
|                        | <i>no sofa bed</i>          | <i>no sofa bed</i>          | <i>with sofa bed</i>          | <i>with sofa bed</i>           |
| Breakfast & Spa        | FOC                         | 300,000                     | 1,000,000*                    | 1,500,000*                     |
|                        | <i>no spa + no sofa bed</i> | <i>no spa + no sofa bed</i> | <i>with sofa bed (no spa)</i> | <i>with sofa bed &amp; spa</i> |

Notes:

“\*” Above surcharges are compulsory

- Children under the age of 16 years old are not permitted in the spa
- >= 16 years old surcharges must coincide with the benefits of the main reservation i.e. half-board OR Spa
- The existing sofa bed will be used as the extra requirement mentioned above.
- Sofa bed rate for children under the age 12 is VND 500,000
- All beverages are at an additional cost for guests confirmed on Half Board & Full Board

### **3. Special Offers**

| Validity                                    | Minimum stay offers                                                                                                                        | Remark                       |
|---------------------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
| <b>Low Season<br/>&amp; Shoulder Season</b> | Minimum three (3) nights and receive 10% discount on contract rates<br>Minimum seven (7) nights and receive 15% discount on contract rates | Applicable to all categories |

| Validity                                | Early bird offers                                                                                                                                                | Remark                       |
|-----------------------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------|------------------------------|
| <b>Low Season &amp; Shoulder Season</b> | 10% discount for all bookings (Bed & Breakfast only) received at least 30 days before arrival.<br>Combine with Minimum stay offer (Add on after discounted rate) | Applicable to all categories |

**Notes:**

- These offers are applicable to FIT booking only (not GIT nor Series Booking).
- All above offers are combinable
- Minimum stay offer & early bird offer are not applicable for meal (half board or full board supplement)
- Minimum stay offer & early bird offer are applicable on sofa bed
- Above offers are applicable for all villa categories and are applicable to all worldwide markets.

**4. Honeymoon Benefits:**

| Validity                                             | Honeymoon offer                                                                    | Remark                   |
|------------------------------------------------------|------------------------------------------------------------------------------------|--------------------------|
| <b>Low Season, Shoulder Season &amp; High Season</b> | Complimentary romantic dinner for couple who book a minimum three (3) nights' stay | Valid for all categories |

**Notes:**

- Above contracted Honeymoon Benefits are combinable with all offers stipulated in this contract.
- Proof of recent marriage is required, i.e. wedding certificate. Wedding certificate to be presented at the time of booking or upon check-in
- Honeymoon benefits are not applicable for extra person(s).

**5. Bank Account Details:**

Bank Name: Vietinbank - Gia Lai Branch  
 Bank address: 01 Tran Hung Dao street - Tay Son Ward – Pleiku City - Gia Lai Province  
 Account Name: CÔNG TY CP KHU DU LỊCH BIỂN MAIA QUY NHƠN (or: MAIA QUY NHON RESORT)  
 Account Number: **126000074609**  
 Swift Code: **ICBVNVX**

**6. Cancellation Policy:**

The company shall notify the hotel in writing of any cancellation prior to the minimum notice period. In the event of late notification, a cancellation charge will apply:

**Low season:**

- If cancelled or modified 08 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 07 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

Shoulder season:

- If cancelled or modified 15 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 14 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

High season:

- If cancelled or modified 22 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 21 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

Peak season:

- If cancelled or modified 31 days prior to arrival date, no fee will be charged.
- If cancelled or modified within 30 days prior to arrival date or in case of no-show, the total price of the reservation will be charged.

**7. Payment terms and conditions:**

Low season:

Full payment must be received 07 days prior to arrival (if no credit).

Shoulder season:

Full payment must be received 14 days prior to arrival (if no credit).

High season:

Full payment must be received 21 days prior to arrival (if no credit).

Peak season:

Full payment must be received 30 days prior to arrival (if no credit).

Once credit had been approved, the company is required to settle the account due to the hotel within 15 days of the invoice date. Should the company fail to settle the accounts within the said credit period, the hotel reserves the right to withdraw the credit facilities.

The hotel also reserves the right to refuse any new bookings on a credit basis until all outstanding accounts are settled.

Invoice unpaid after the credit period will attract interest at 1.5% per month. After 60 days bookings may not be honored or credit will be recalled and new bookings need to be settled 72 hours prior to arrival.

All bank transfer fee will be paid by TA/TO.

**8. General terms and condition:**

1. Rates must be packages and not applicable on internet.
2. FIT rates quoted are applicable only to FIT packages and group tour programs of below 6 rooms. Rates are not applicable for tour group, series groups, incentive, corporate meeting, trade delegation and convention groups.
3. Hotel reserves right to impose additional black-out dates to special offers/value adds with 30-day notice.
4. Check-out time is 12 pm. From 12 pm to 6 pm, 50% of room rate will be charged and after 6 pm, a full nightly rate will be charged, hotel may offer complimentary late check-out up to 2 pm, however this is subject to availability and at the hotel discretion.  
Check-in time is 3 pm. From 8 am to 3 pm, 50% of room rate will be charged and before 8 am, a full nightly rate will be charged, hotel may offer complimentary early check-in from 12 pm, however this is subject to availability and at the hotel discretion.
5. Booking amendments: Unused room nights are not refundable for early departure. Extension of stay is subject to space and rate availability. If rooms nights can be re-sold these cancellation fees may be waived, subject to hotel discretion.
6. Approved vouchers should accompany individual arrivals unless a prior arrangement has been agreed in writing.
7. All prices are quoted in Vietnam Dong (VND) and agreed payment can be made in any of the following forms: Bank Draft, Bank Notes, Money Order or Telegraphic Transfer.
8. All cancellation must be informed in writing and have to be acknowledged by the resort. In the event of a non-arrival on the scheduled date, the company shall be held responsible for payment computed as the equivalent for the full length of stay.
9. All room reservations and rates are subject to availability and confirmation unless allocations have been confirmed.
10. Text and images need to be approved and proof read by the hotel before publishing. Any hotel visuals presented should be made only the signed and dated approval and vetting from our side. Any default in any clause of this agreement shall result in immediate termination of this agreement.

11. Please note all rates committed to your company are confidential and should not be published at any time or disclosed to a third party for any reason or purpose including online agents.
12. Under no circumstance are the given contracted rates to be passed on/sub-contracted to any dot.com/travel websites/third party company/organization that will result in the sale of our rooms be made at rates lower than those established by our hotel as benchmark rates. The hotel reserves the right to terminate this agreement without any advance notice and proceed to halt all acceptance of bookings from your company if any violations are found to have originated incurred from your end unless a separate contract has been drawn up just for such purpose. Any feature of our hotel on your official company site should be made with no indication/mention of rates/tariff other than those authorized by the hotel. Your end is made accordance of room allocation from our end to on the mutual agreed of the parties that such allotment shall be used strictly and exclusively by you for purpose of required free-sales by your retail agents and with the brochure feature as stipulated in clause 1. This "retail agent" definition does not include the above third party internet that could booking sites nor any other organizations possibly present our rate lower than our given benchmark sell at that point of time.
13. Leisure rate is defined by our hotel as the rate which will be quoted to any non-qualified guest who books our hotel regardless of channel of reservation.
14. The hotel reserves the right at any time by giving notice in writing to cancel this agreement should the company fail to fulfil these terms & conditions.
15. If for any reason beyond the Resort or Company's reasonable control, including but not limited to strikes; labor disputes; acts of God; fires; flood or other emergency conditions; any delay in necessary and essential repairs of the Resort, the Resort or the Company is unable to perform its obligations under this Agreement, such non-performance is excused and such party may terminate this Agreement without further liability or any nature, upon return of the Company's unused deposit. In no event shall Resort or Company be liable for consequential damages of any nature for any reason whatsoever.
16. Tax fluctuations: Should the Government either increase or decrease the percentage of tax collected on room and/or meal rates, or imposes additional taxes and levies, the hotel reserves the right to adjust the contract rates accordingly.  
In the event of currency devaluation or appreciation of over 10%, we reserve the right to review the contractual rates.
17. Disputes: It is expressly agreed and declared that the proper law of the Agreement is the law of Vietnam and that any disputes, action or other matters arising hereunder shall be determined by court in Quy Nhon city, Binh Dinh province, Vietnam in accordance with the laws and procedures of Vietnam under any and all circumstances.

Upon acceptance, please return a signed copy to us within 30 days of the issue date of this contract; if not, the contract is considered void.

On behalf of:  
**MAIA RESORT QUY NHON**

Accepted by:

Mr. MARC BITTNER  
General Manager  
Date:

Date: